

On this record, Cross-Complainant has sufficiently alleged circumstances of malice and oppression. The motion to strike punitive damages is denied.

5. CU0002418 Andrew Ehlers v. Brandon Murray, et al.

Defendants' unopposed motion for leave to file a cross-complaint is granted. Defendants are ordered to file and serve the proposed cross-complaint attached as Exhibit A to the Declaration within thirty (30) days of the hearing on this motion.

Legal Standard

Code of Civil Procedure § 428.10 provides that a party against whom a cause of action has been asserted may file a cross-complaint setting forth: "(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." Code Civ. Proc. § 428.10(b). A party shall obtain leave of court to file a cross-complaint if it is not concurrently filed with the answer or at any time before the court sets a trial date. Code Civ. Proc. § 428.50(a)-(b). Leave may be granted in the interest of justice at any time during the course of the action. Code Civ. Proc. § 428.50(c).

If a cross-complaint is compulsory, leave must be granted as long as the cross-complainant is acting in good faith, so as to avoid forfeiture of the causes of action. Code Civ. Proc. §426.50; see *Silver Organizations, Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 101 (concluding that the late filing of the motion to file a compulsory cross-complaint absent some evidence of bad faith is insufficient evidence to support denial of the motion). To be considered a compulsory cross-complaint, the related cause of action must have existed at the time defendant served its answer to the complaint. *Crocker Nat'l Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864.

Analysis

Defendants move to file a cross-complaint, arguing: (1) they recently learned the insurer providing defense counsel would be unable to pursue affirmative cross-claims on their behalf; and (2) they were awaiting the results of their motion to compel mediation and Plaintiff's motion for leave to file an amended complaint. The Cross-Complaint alleges causes of action for: (1) Breach of Contract; (2) Breach of the Covenant of Good Faith and Fair Dealing; and (3) Negligent Violation of Statutory Duty.

First, Plaintiff has filed no opposition to the motion; as such, the Court deems Plaintiff's failure to oppose the motion as consent to the granting of the same. See Cal. Rules of Court, rule 8.54(c) ("failure to oppose a motion may be deemed a consent to the granting of the motion."); see, e.g., *Amato v. Downs* (2022) 78 Cal.App.5th 435, 440, n.3 (unopposed motion can be granted on that basis, citing rule 8.54(c)).

Second, the Court finds the cross-complaint is compulsory because it arises out of the same occurrence, namely, the contracts for construction services and subsequent work performed.

Moreover, there is no evidence to suggest Defendants acted in bad faith in connection with its request.

The motion is granted.

6. CU0002626 Bank of America, N.A. v. Prashant Tyagi

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar.

7. CU0002738 Roberta McGregor v. Victoria Yeager

No appearances are required. The Court, on its own motion, continues the hearing for this motion until September 4, 2026 at 10:00 a.m. in Department 6.

The tentative ruling for purposes of the September 4, 2026, hearing is as follows: Defendant/Cross-Complainant Victoria S. Yeager's ("Defendant") motion regarding discovery is granted in part. The Court grants Defendant's motion for an order deeming its Requests for Admission (Sets One and Two) directed to Plaintiff Roberta McGregor as admitted, *unless Plaintiff serves substantially compliant responses before the scheduled hearing on September 4, 2026*. The Court grants Defendant's motion to compel initial responses to Special Interrogatories (Set One) without objections. The Court grants Defendant's motion to compel further responses to Form Interrogatories (Sets One-Three), Special Interrogatories (Set Two), and Requests for Production of Documents (Sets One and Two) as described below. The Court denies Defendant's request to propound additional discovery. The Court grants Defendant's request for sanctions in part.

Briefing

Under the Civil Rules of Procedure and Rules of Court, a moving party is allowed to file a motion with a memorandum of points and authorities (15 pages maximum) and supporting documents, an opposing party is allowed to file a single opposition with memorandum (15 pages maximum) and supporting documents, and the moving party is permitted to file a single reply (10 pages maximum), all within circumscribed time periods. *See* Code Civ. Proc. 1005(b), Rules of Court, Rules 3.112-3.113. Plaintiff, without leave of Court, filed *multiple* oppositions. This was improper. In the exercise of its discretion, the Court considered the same. Henceforth, all briefing *shall* comply with the requirements of the Rules of Procedure and Rules of Court, *without exception*. The Court, as necessary, will exercise its authority to strike and disregard future filings that do not comply with these rules.

Form Interrogatories

Legal Standard

Under Code of Civil Procedure section 2030.300(a), a court may order a party to serve a further response to an interrogatory when the court finds that: "(1) An answer to a particular interrogatory is evasive or incomplete[;] (2) An exercise of the option to produce documents